

		This claim also arises from the claim Plaintiff improperly withheld distributions of \$51,882 for 2024. “[E]mbezzlement, a form of larceny, has the same theft elements. The offense is committed by every person who (1) takes possession (2) of personal property (3) owned or possessed by another, (4) by means of trespass (5) with the intent to steal the property, and (6) carries the property away. (People v. Davis (1998) 19 Cal.4th 301, 305, 79 Cal.Rptr.2d 295, 965 P.2d 1165 (Davis).) The general rule, as stated by the Davis court, is that the intent to steal required for larceny is an intent to deprive the owner permanently of possession of the property.” (People v. Casas (2010) 184 Cal.App.4th 1242, 1246.) Again, Plaintiff maintains he has sole discretion to make or withhold distributions as the remaining manager under the Operating Agreement. He states there has been no distribution to either member because the LLCs is deadlocked and distribution is impractical until the LLC is dissolved. Therefore, Plaintiff asserts he has a “complete affirmative defense (Good Faith).” (Notice, p. 5.) Plaintiff further asserts the disputed funds are being held in trust pending the resolution of this litigation. (UMF 133, Reply. at p. 9.) However, there is a triable issue as to whether Plaintiff has wrongfully taken possession of funds to which Defendant is entitled, with the intent to permanently deprive Defendant of such funds. Although Plaintiff asserts plausible grounds for withholding distributions, Defendant asserts distributions are mandatory and the funds are being withheld for strategic reasons without legal authority. (See Defendant’s Responses to UMFs 184-211.) Therefore, the motion is denied as to this claim.
11	25-01510887 Ortiz-Garcia vs. Envision Nwk Toy Auto LLC	Motion to Compel Arbitration Defendants Envision Nwk Toy Auto, LLC and Envision Motor Holdings, LLC’s Motion to Compel Arbitration is GRANTED. This action is ORDERED stayed pending the resolution of arbitration. (Code Civ. Proc., § 1281.4.) The court resolves the parties’ dispute regarding the existence of the arbitration agreement using a three-step burden-shifting process. (<i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1056.) “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. A movant can bear this initial burden by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature. At this step, a movant need not follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation as provided in rule 3.1330. If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement’s existence—in this instance, by disputing the authenticity of their signatures. To bear this burden, the arbitration opponent must offer admissible evidence creating

		a factual dispute as to the authenticity of their signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.” (<i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 (cleaned up).) Defendants have submitted sufficient evidence to overcome the initial low burden of proving the existence of an agreement to arbitrate by attaching the agreement to arbitrate to Morris’s declaration. Thus, the burden shifts to Plaintiff to contest the agreement’s existence, usually through disputing the alleged signature. Plaintiff instead challenges the semantics of the label of his hiring status at the time of the alleged signing. This is insufficient to create a factual dispute of the agreement’s existence. Plaintiff would need some employment agreement with the newly formed entity to be an employee of that entity and to make any employment claims against that entity. Importantly, Plaintiff does not dispute signing the agreement. (Ortiz-Garcia Decl., ¶¶ 2-8.) Thus, Plaintiff has not sufficiently challenged the existence of the agreement. Additionally, Plaintiff cannot both claim Defendants are not his employer for the purposes of this Motion and also claim they are liable for his employment claims as his employer for the purposes of his Complaint. Even if the Court were to entertain this contradiction, Plaintiff would be estopped from asserting Defendants could not compel arbitration. (See <i>JSM Tuscany, LLC v. Superior Ct.</i> (2011) 193 Cal.App.4th 1222, 1239.) Finally, Plaintiff has failed to demonstrate any substantive unconscionability as a defense to enforcement. Procedural and substantive unconscionability “must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (<i>Armendariz v. Foundation Health Psychcare Servs., Inc.</i> (2000) 24 Cal.4th 83, 114.) “The party resisting arbitration bears the burden of proving unconscionability.” (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 247.) Accordingly, Defendants’ Motion is granted.
12	25-01506551 Ramirez vs. Essex Property Trust	Motion to Substitute Successor Plaintiffs’ motion to substitute Alicia Perez as successor in interest to deceased plaintiff Jonathan Paul Ramirez is CONTINUED to ____. “A pending action or proceeding does not abate by the death of a party if the cause of action survives.” (Code Civ. Proc. §377.21.) “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.” (Code Civ. Proc. §377.31.)